

Juvenile Justice (Care and Protection of Children) Orissa Rules, 2002

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State of Odisha - Act

Juvenile Justice (Care and Protection of Children) Orissa Rules, 2002

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Juvenile Justice (Care and Protection of Children) Orissa Rules, 2002

Rule JUVENILE-JUSTICE-CARE-AND-PROTECTION-OF-CHILDREN-ORISSA-RULES-2002 of 2002

Published on 17 August 2002

Commenced on 17 August 2002

[This is the version of this document from 17 August 2002.]

[Note: The original publication document is not available and this content could not be verified.]

Juvenile Justice (Care and Protection of Children) Orissa Rules, 2002

Published vide Notification S.R.O. No.740/2002, dated 17th August 2002, Orissa Gazette Extraordinary No. 2145, Dated 22.11.2002

Women & Child Development Department

Rules under The Juvenile Justice (Care and Protection of Children) Act, 2000

S.R.O. No.740/2002. - In exercise of the powers conferred by Section 68 of the Juvenile Justice (Care and Protection of Children) Act, 2000 (No. 56 of 2000), the State Government do hereby make the following rules, namely:-

Chapter-I Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Juvenile Justice (Care and Protection of Children) Orissa Rules, 2002.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires.

(a)

"Act" means the Juvenile Justice (Care and Protection of Children) Act, 2002;

(b)

"Adoption" means taking custody and responsibility permanently of a child/juvenile covered by this Act, who will have all the rights and privileges of a natural born child;

(c)

"Government" means the State Government of Orissa;

(d)

"Form" means the form annexed to these rules;

(e)

"Institution" for the purpose of these rules, means an observation home or a special home or a children's home or a shelter home set up under Sections 8, 9, 34 and 37 of the Act;

(f)

"Officer-in-charge" means a person appointed for the control and management of institution certified or recognised as such under the Act;

(g)

"Section" means a Section of the Act; and

(h)

"Words and expressions" used in these rules but not defined, unless the context otherwise requires, shall have the same meaning as assigned to them in the Act.

Chapter-II Juvenile in Conflict with Law

3.

Juvenile Justice Board.

(1)

The Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of the first class, as the case may be, and two social workers of whom at least one shall be a woman, forming a bench.

(2)

Every such bench shall have the powers conferred by the Code of Criminal Procedure, 1973 (2 of 1974).

(3)

(a)

A Magistrate with special knowledge/training in child psychology or child welfare shall be appointed as Principal Magistrate of the Juvenile Justice Board.

(b)

In case the Principal Magistrate with such special knowledge and training is not available, then the Government shall provide for short term training for such Magistrate.

(4)

The two social workers, of whom at least one shall be a woman, who shall be appointed by the Government.

(5)

The Government in Home Department shall take into consideration a panel of names to be recommended, who could be considered for selection of social worker for the Board.

(6)

The social worker to be appointed as a Member of the Board shall be a person who has been actively engaged in planning, implementing and administering health, education or other welfare activities pertaining to children for at least seven years.

(7)

The Board shall have tenure of three years and the appointment of members shall be coterminous with the tenure of the Board.

(8)

A social worker to be Member of the Board shall be eligible for appointment for a maximum of two terms and shall not be more than 65 years at the time of first appointment.

(9)

The Board shall hold its sittings in the premises of an Observation Home and shall meet on all the working days of a week.

(10)

Member may resign any time by giving one months advance notice in writing or may be removed from office as provided under sub-section (5) of Section 4 of the Act.

(11)

Social worker members of the Juvenile Justice Board shall be paid such travelling/meeting allowance or honorarium as the Government may decide from time to time.

4.

Institutional management for juveniles in conflict with law.

(1)

The Government/Voluntary Organisation shall set up separate observation homes for boys and girls. Separate special home shall be set up for girls above the age of 10 years and boys in the age groups of 11-15 and 16-18 years as required.

(2)

The following procedure shall be followed in respect of the newly admitted juveniles

(a)

Receiving and search;

(b)

Haircut (Unless prohibited by religion), issue of toiletry items;

(c)

Disinfection and storing of juvenile's personal belonging and other valuables;

(d)

Bath;

(e)

Issue of new set of clothes, bedding and other outfit and equipment (As per rules and scales);

(f)

Medical examination and treatment, where necessary. Any juvenile suspected to be suffering from contagious/infectious diseases, mental ailments, addiction, etc., shall be immediately segregated in specially earmarked dormitories or wards or hospitals.

(g)

Attending to immediate and urgent needs of the juvenile's like interview letter to parent(s) personal problems etc., and

(h)

Verification by the Officer-in-charge of order of the Juvenile Justice Board, identification marks, re-register entries, cash, property, etc.

(3)

Each institution shall follow the following schedule for newly admitted juveniles

(a)

Health Sanitation, Hygiene;

(b)

Institutional discipline and standards of behaviour, respect for elders, teachers, etc.;

(c)

Self-improvement opportunities; and

(d)

Responsibilities and obligations.

(4)

A case history of the juvenile admitted to an institution shall be maintained continuously which may give information regarding their sociocultural and economic background. This information may be collected through all possible and available sources, including home, parents or guardians, employer, school, friends and community. The educational level and vocational aptitude may also be assessed on the basis of test and interview conducted by the teacher, the workshop supervisor and other technical staff. The appropriate linkages may also be established with outside specialist and community-based welfare agencies, psychologist, psychiatrist, child guidance clinic, hospital and local doctors, open school Jan Sikshan Sansthan etc.

(5)

All residents in the institution shall be given work like-

(a)

self-help in maintaining their own establishment;

(b)

cleaning of open spaces, gardening, etc.;

(c)

preliminary operations for crafts.

(6)

A well-rounded programme of pre-release planning and follow up of cases discharged from special homes shall be organised in all institutions in close collaboration with existing Governmental and Voluntary Welfare Organisations.

5.

Daily routine.

- Each institution shall have a well related daily routine for the juveniles, which should be displayed and should provide, among other aspects, for regulated and disciplined life, personal hygiene and cleanliness, physical exercise, educational classes, vocational training, organised recreation and games, moral education, group activities, prayer and community singing. Special programmes may be organised for Sunday and holidays.

6.

Diet scale.

- The Government shall prepare diet scale for juveniles in consultation with nutrition experts so that the diet becomes balanced, nutritious and varied. Special diet may be provided on holidays and festivals and to the sick juveniles as required.

7.

Issue of clothing, bedding and other articles.

- Each Juvenile shall be provided with clothing and bedding including customary under-garments, towels, jersey for winter, school uniform for juveniles attending outside schools, durry, bedsheets, blanket, pillow, chappal or shoes, utensils as required; and tooth powder, soap, oil, comb, etc., as per the scale laid down by the State Government from time to time.

8.

Sanitation and hygiene.

- Each institution shall have the following facilities

(a)

Sufficient and treated drinking water;

(b)

Sufficient water for bathing and washing clothes; maintenance and cleanliness of the premises;

(c)

Proper drainage system;

(d)

Arrangements for disposal of garbage;

(e)

Protection from mosquitoes;

(f)

Sufficient number of latrines in the proportion of at least one latrine for seven children;

- (g)
Sufficient number of bathrooms in the proportion of at least one bathroom for ten children;
- (h)
Sufficient space for washing;
- (i)
Cleanliness in the kitchen;
- (j)
Fly-proof kitchen;
- (k)
Sunning of bedding and clothing;
- (l)
Cleanliness in the Medical Centre.

9.

Accommodation.

- The minimum standard of accommodation shall be as follows to the extent possible:-

- (a)
Dormitory
..
40 square feet per juvenile
- Classroom
..
Sufficient accommodation
- Workshop
..
Sufficient work space
- Play ground
..
Sufficient play ground area should be provided in each institution according to the total number of juveniles in the institution.

- (b)
The dormitories, classrooms and workshops shall have sufficient cross ventilation and light.

10.

Medical care.

- (1)
Each institution shall provide for the necessary medical facilities to ensure that-

- (a)
regular facilities are available for the medical treatment;
- (b)
arrangements are made for the immunization coverage; and
- (c)
a system is evolved for referral of serious cases to the nearest civil hospital or treatment centres.

- (2)
Each juvenile admitted in an observation home shall be medically examined by the Medical Officer within 24 hours, in special cases within 48 hours, and also at the time of transfer of the juvenile to a special home within a similar period before transfer and further at any other time that may be considered necessary by the Medical Officer or the Officer-in-charge.

- (3)
No surgical treatment shall be carried out on any juvenile without previous consent of his parent or guardian, unless either the parent or guardian cannot be found and the condition of the juvenile is such that any delay would, in the

opinion of the Medical Officer, involve unnecessary suffering or injury to the health of the juvenile. Proper direction to this effect must be obtained from the Juvenile Justice Board within the shortest possible time.

(4)

A health record of each juvenile in the institution shall be maintained on the basis of quarterly medical check up.

11.

Monitoring and evaluation of Juveniles.

(1)

A juvenile shall be grouped on the basis of the age, physical and mental health, length of stay order, degree of delinquency and the character.

(2)

For the above purpose, a monitoring and evaluation committee shall be constituted in each institution consisting of the following personnel:-

Officer-in-charge/Probation Officer

..

Chairperson

Child Welfare Officer/D.S.W.O.

..

Member-Secretary

Medical Officer

..

Member

Workshop Supervisor

..

Member

Instructor or Vocational Teacher

..

Member

(3)

This Committee shall periodically meet to consider and review

(a)

Custodial care, housing, place of work, area of activity and type of supervision required;

(b)

Individual problems of juveniles, family contacts and adjustment, etc.;

(c)

Vocational training and opportunities for employment;

(d)

Education, health education, social education, academic education, vocational education and moral education;

(e)

Social adjustment recreation, group work activities, guidance and counselling;

(f)

Special instructions, collecting moral information and special precautions to be taken, etc.;

(g)

Review of progress and adjusting institutional programmes to the needs of the inmates;

(h)

Planning post-release rehabilitation programme and follow up for a period of two years in collaboration with after care service;

(i)

Pre-release preparation;

(j)

Release, and

(k)

Any other matter which the Officer-in-charge may like to bring up.

12.

Rewards and earnings.

- Rewards to the juveniles at such rates as may be fixed by the management of the home from time to time may be granted by the Officer-in-charge as an encouragement to steady work and good behaviour. At the time of release, the reward shall be handed over after obtaining a proper receipt from the parent/guardian who comes to take charge of the juvenile.

13.

Visits to and communication with inmates.

(1)

The parents and near relations of the juveniles shall be allowed to visit once a month or in special cases, more frequently at the discretion of Officer-in-charge. The visiting hours shall be laid down by the Officer-in-charge.

(2)

The receipt of letter by the juveniles of the institution shall not be restricted and they shall have freedom to write as many letters as they like at all reasonable times. However, the institution shall ensure that where parents, guardians or relatives are known, at least one letter is written by the juvenile every month for which the postage shall be provided.

(3)

The Officer-in-charge may peruse any letter written by or to juvenile, and may for any reasons that he considers sufficient to refuse to deliver or issue the letter, may destroy the same after recording his reasons in book maintained for the purpose.

14.

Prohibited articles.

- No person shall bring into the institution the following prohibited articles :-

(a)

Fire-arms or other weapons, whether requiring licence or not (like lathi, spears, swords etc.);

(b)

Alcohol and spirit of every description;

(c)

Bhang, ganja, opium and other narcotic/psychotropic substances;

(d)

Tobacco; or

(e)

Any other article specified in this behalf by the State Government by general or special order.

15.

Articles found on search and inspection.

(1)

The Officer-in-charge shall see that every juvenile received in the institution is searched, his personal effects inspected and any money or valuables found with or on the person of the juvenile is kept in the safe custody of the Officer-in-charge. Girls shall be searched by a female members of the staff and with due regard to decency.

(2)

In every institution, a register of money, valuables and other articles found with or on the person of a juvenile received therein shall be maintained which may be called the "Personal Belonging Register".

(3)

The entries relating to each juvenile shall be read over to juvenile in the presence of a witness whose signature shall be obtained in token of the correctness of such entries. All such entries shall be countersigned by the Officer-in-charge.

16.

Disposal of articles.

(1)

The money or valuables belonging to a juvenile received or detained in an institution shall be disposed of in the following manner:-

(a)

On an order made by the competent authority in respect of any juvenile, directing the juvenile to be sent to an institution, the Officer-in-charge shall deposit such juvenile's money together with the sale proceeds in the manner laid down from time to time in the name of the juvenile. The amount shall be kept with the Officer-in-charge. Juvenile's valuables, clothing, bedding and other articles, if any, shall be kept in safe custody.

(b)

When such juvenile is transferred from one institution to another, all his property, valuables, shall be sent along with the juvenile to the Officer-in-charge of the institution to which he has been transferred together with a full and correct statement of the description and estimated value thereof.

(c)

At the time of the release of such juvenile, the property or valuables kept in safe custody and the money deposited in the name of juvenile shall be handed over to the parent or guardian, as the case may be, and an entry made in that behalf in the register. Such entry shall be signed by the Officer-in-charge.

(d)

When a juvenile of an institution dies therein the property left by the deceased and the money deposited in the name of the juvenile shall be handed over by the Officer-in-charge to any person who establishes his claim thereto and executes an indemnity bond. A receipt shall be obtained from such person for having received such property and the amount. If no claimant appears within a period of six months from the date of death/escape of such juvenile, the property and amount shall be disposed of as per the decision taken by monitoring and evaluation committee.

17.

Duties of the Officer-in-Charge.

(1)

Officer-in-charge shall be responsible for the following :-

(a)

adequate security measure and periodical inspection thereof;

(b)

proper maintenance of buildings and premises;

(c)

prompt, firm and considerate handling of all discipline problems;

(d)

careful handling of plant and equipment;

(e)

accident preventive measures;

(f)

fire preventive measures;

(g)

segregation of juvenile/child suffering from contagious/infectious diseases;

(h)

proper storage and inspection of food stuffs;

(i)

stand-by arrangements for water storage, power plant, emergency lighting, etc.

(2)

In the event of an escape, the action to be taken is as follows :-

(a)

The Officer-in-charge shall immediately send the guards in search of the juvenile at places like railway stations, bus-stands and other places where the juvenile is likely to go;

(b)

The parents or guardians shall be informed immediately about such escape if known;

(c)

A report shall be sent to the area police-station along with the details/description of the juvenile, with identification marks and a photograph; with a copy to Juvenile Justice Board and the authorities concerned;

(d)

The Officer-in-charge shall hold an inquiry about each escape and send his report to the Board and the authority concerned.

(3)

On the occurrence of any case of death or suicide the procedure to be adopted is as under-

(a)

If a juvenile dies within 24 hours of his admission to the institution an inquest and post-mortem examination shall be held.

(b)

Whenever a sudden or violent death or death from suicide or accident takes place, immediate information shall be given to the Officer-in-charge and the Medical Officer. The Officer-in-charge and the Medical Officer shall examine and inspect the dead body. In case a juvenile dies due to causes other than natural causes or if the cause of death is not known or if the death has occurred due to suicide or violence or accident or whenever there is any doubt or complaint or question concerning the cause of death of any juvenile, the Officer-in-charge shall inform the Officer-in-charge of the police-station having jurisdiction. The Officer-in-charge shall also immediately give intimation to nearest Magistrate empowered to hold inquests.

(c)

The Medical Officer shall report to the Officer-in-charge about the happening of the natural death of a juvenile and see that the body is decently removed to the mortuary.

(d)

In case of natural death or due to illness of juvenile of an observation home or special home the Officer-in-charge shall obtain a report of the Medical Officer stating the cause of death. A written intimation about the death shall be given immediately to the nearest police-station, Juvenile Justice Board, National Human Rights Commission and the authority concerned.

(e)

The parents or guardians of the deceased juvenile shall be contacted and the Officer-in-charge shall wait for 24 hours for the arrival of relatives. After the inquest is held, the body should be disposed of in accordance with the known religion of the juvenile.

(4)

In the event of custodial rape and/or sexual abuse, the action to be taken as follows :-

(a)

In case any resident makes any complaint or occurrence of such nature comes to the knowledge of the Officer-in-charge, a report shall be placed before the Juvenile Justice Board, who in turn, will order for special investigation. The Juvenile Justice Board shall direct the local police-station to register case against the person found guilty under the relevant section of the I.P.C.

(b)

The Special Juvenile Police Unit will also take due cognizance of such occurrences and conduct necessary investigations.

(5)

In the event of any other crime committed in respect of residents, the Juvenile Board will take cognizance and arrange for necessary investigation to be carried out by Special Juvenile Police Unit.

18.

Leave and absence of juvenile.

(1)

The juvenile of an institution may be allowed to go on leave of absence/or released on licence and stay with his family during examination, emergencies or special occasions like marriage in the family etc. While the leave of absence for short period not exceeding 7 days excluding the journey time may be recommended by the Officer-in-charge. Granting of such leave shall be at the discretion of the Juvenile Justice Board and it cannot be claimed as a right.

(2)

The parents or guardian of the juvenile shall submit an application to the Officer-in-charge requesting for release of the juvenile on leave, stating clearly the purpose for the leave and the period leave. If the Officer-in-charge considers that granting of such leave is in the interest of the juvenile, he shall call for a detailed report of the Probation Officer on the

advisability or otherwise and forward the case to the Juvenile Justice Board. While issuing orders sanctioning the leave of absence/or release on licence, as the case may be, the competent authority shall clearly mention the period of leave and the conditions attached to the leave order. If any of these conditions are not complied with during the leave period, the juvenile may be recalled to the institution.

(3)

The parent or guardian shall arrange to escort the juvenile from and to the institution and bear the travelling expenses. In exceptional cases or during an emergency, the Officer-in-charge may arrange to escort the juvenile to the place of the family and back.

(4)

If the juvenile runs away from family during the leave period, the parent or guardian are required to inform the Officer-in-charge of the institution immediately and try to trace the juvenile and if found, send the juvenile to the institution. If the parent or guardian do not take proper care of the juvenile during the leave period or do not bring the juvenile back to the institution within the stipulated period, such leave may be refused on later occasions. If the juvenile does not return to the institution on expiry of the sanctioned leave, the Board shall refer the case to police for taking charge of the juvenile and bring him back to the institution.

(5)

The period of such leave shall be deemed to be part of the period of detention in the institution. The time which elapses after the failure of a juvenile to return to the institution within the stipulated period shall be excluded in computing the period of his detention in the institution.

19.

Release.

(1)

The Officer-in-charge shall maintain a roster of the cases to be released on the expiry of the period of stay as ordered by the Board. Each case shall be placed before the Monitoring and Evaluation Committee for proper mainstreaming. With regard to cases in which the juvenile is kept for the maximum period, action may be initiated six months before they attain the age of 18 years.

(2)

Timely information of the release of a juvenile and of the probable date of release shall be given to the parent or guardian and the parent or the guardian shall be invited to come to the institution to take charge of the juvenile on the date. If necessary, the actual expenses of the parent's or guardian's journey both ways and of the juvenile's journey from the institution shall be paid to the parent or guardian by the Officer-in-charge at the time of the release of the juvenile. If the parent or guardian, as the case may be, fails to come to take charge of the juvenile on the appointed date, the juvenile shall be taken by the escort of the institution. Girls shall be escorted by a female escort.

(3)

At the time of release or discharge a juvenile may be provided with a set of summer/winter clothing, as the case may be, if the Officer-in-charge deems it necessary.

(4)

If the juvenile has no parent or guardian, he may be sent to an after care organization or in the event of employment to the person who has undertaken to employ the juvenile by an order of the Releasing Authority in Form VII.

(5)

The Officer-in-charge of a girl's institution, subject to the approval of the designated authority, may get suitable girls above the age of 18 years married according to the procedure laid down by the competent authority from time to time.

(6)

The Officer-in-charge shall order the discharge of any juvenile, the period of whose detention has expired and inform the competent authority within 7 days of the action taken. If the date of release falls on a Sunday or another public holiday, the juvenile may be released on the preceding day, entry to that effect being made in the register of discharge. The Officer-in-charge shall in appropriate cases, order the payment of subsistence at such rates as may be fixed from time to time and the railway and road, or both fare, as the case may be.

(7)

In deserving cases, the Officer-in-charge may provide the juvenile with such small tools, as may be necessary, to start a business subject to such maximum cost as may be fixed.

(8)

The Officer-in-charge may, subject to the approval of the competent authority, allow at their own request such girls as have no place to go, to stay in the institution after the period of their detention has expired, till some other suitable arrangements are made.

20.

Maintenance of case file.

- The case file of each juvenile shall be maintained in the institution containing the following information as applicable, namely

(a)

report of the person/agency who produced the juvenile before the Board;

(b)

probation officer's report;

(c)

information from previous institution;

(d)

initial interview material, information from family members, relatives, community, friends and miscellaneous information;

(e)

source of further information;

(f)

observation reports from staff members;

(g)

reports from Medical Officer, I.Q. testing, aptitude testing, educational/vocational tests;

(h)

social history;

(i)

summary and analysis by Officer-in-charge;

(j)

Initial classification sheet;

(k)

instruction regarding training and treatment programme and about special precautions to be taken;

(l)

leave and other privileges granted;

(m)

violation of rules, regulations, special achievements;

(n)

quarterly progress report from various sections;

(o)

review sheet;

(p)

M. C. report (in case of girls);

(q)

pre-release programme;

(r)

final progress report;

(s)

leave of absence/release on license;

(t)

final discharge;

(u)

follow up reports;

(v)

central index number;

(w)

annual photograph;

(x)

remarks.

Note - All the case files maintained by the institutions and the Juvenile Justice Board shall be computerised and networked so that the data is centrally available.

21.

Production of a Juvenile.

(1)

As soon as juvenile in conflict with the law is apprehended by the police, the police shall place the juvenile under the charge of the special juvenile police unit or the designated police officer.

(2)

The special juvenile police unit to which the juvenile is brought, shall inform the probation officer concerned of such apprehension to obtain information regarding the antecedents and family background of the juvenile and other material circumstances likely to be of assistance to the Board for making the inquiry.

(3)

Prior to production of a juvenile before the Board, the juvenile may be placed in a safe place within the police-station, (which shall not be a lock up) or in a "place of safety".

(4)

The special juvenile police or the designated police officer shall produce the juvenile before the Magistrate or a Member of the Board within 24 hours of his apprehension (excluding the time taken to bring the juvenile from the police-station/place of safety to the Board).

(5)

In case of delay in production before the Magistrate/Board, the details of not doing so be recorded in the police diary/general diary.

(6)

In case a recognised voluntary organisation takes a juvenile to the Juvenile Justice Board, the voluntary organisation shall also inform the concerned police-station.

(7)

The Government shall recognise only such voluntary organisations which can provide the services of probation, counselling, case work, a place of safety and also associate with the Special Juvenile Police Unit. Only those registered voluntary organisations, which are willing and have the capacity, facilities and expertise to do so shall be recognised for the purpose.

(8)

The registered voluntary organisation shall prepare a report narrating the circumstances of apprehension and offence committed and produces the juvenile before the Board/Police with the report.

(9)

When a juvenile is produced before an individual member of the Board, the order given by the member shall be ratified in the next meeting of the Board.

(10)

The police/recognised voluntary organisation shall be responsible for the safety and basic amenities to the juveniles apprehended or kept under their charge during the period of such charge they are with them.

22.

Procedure to be followed by a Juvenile Justice Board in holding inquiries.

(1)

In all cases under the Act the proceedings shall be conducted in as simple a manner as possible. Care shall be taken to ensure that the juvenile against whom the proceedings have been instituted is given home like atmosphere during the proceedings.

(2)

When witnesses are produced for examination, the Board shall make free use of the power conferred on it by Section

- 165 of the Indian Evidence Act, 1872, to question them so as to bring out any point that may go in favour of the juvenile.
- (3)
In examining a juvenile and recording his statement the competent authority shall be free to address the juvenile in any manner that may seem suitable in order to put the juvenile at ease and to elicit the true facts, not only in respect of the offence of which the juvenile is accused, but also in respect of the home and social surroundings and the influence to which the juvenile may have been subjected. The record of the examination shall be in such form as the Board may consider suitable having regard to the contents of the statement and circumstances in which it was made.
- (4)
In every case concerning a juvenile, the Board shall obtain a birth certificate or medical opinion regarding his age and his physical and mental conditions; and when passing orders in such case shall, after taking into consideration the medical opinion and such other evidence as may be available, record a finding in respect of his age.
- (5)
The Government shall recognise registered voluntary organisations to supervise and submit periodical reports as directed by the Board regarding the orders passed under clauses (b) and (c) of sub-section (1) of Section 15 of the Act.
- (6)
In accordance with sub-section (2) of Section 10, the Board in Form I shall order a Probation Officer, or otherwise to conduct a social investigation, reporting on the character and antecedents of the juvenile with a view to assessing the best possible mode for placement, such as, with the family, an institution or otherwise permissible under the Act.
- (7)
When a juvenile is placed under the care of a parent or a guardian and the Juvenile Justice Board deems it expedient to place the juvenile under the supervision of a probation officer, it shall issue a supervision order in Form II.
- (8)
Whenever the Juvenile Justice Board orders a juvenile to be kept in an institution, it shall forward to the Officer-in-charge of such institution copy of its order in Form III with any particulars of the home and parents or guardian and previous record.
- (9)
Ordinarily juvenile shall be lodged in a home closest to where he/ she belongs.
- (10)
The Officer-in-charge of an institution certified as special home under sub-section (1) of Section 9 shall be informed in advance by the Board before any juvenile is committed to it.
- (11)
The Officer-in-charge of the said institution may on receipt of the information, intimate in writing objections, if any, to the committal of the juvenile and the objections shall be fully taken into consideration by the Board before the juvenile is committed to the said institution.
- (12)
In case the Board orders the parent of the juvenile or the juvenile to pay a fine, the amount realized will be deposited in the Government treasury.
23.
Procedure in respect of Sections 23, 24, 25 and 26 of the Act.
- The offences against juvenile specified under Sections 23, 24, 25 and 26 shall be deemed to be bailable or non bailable besides being cognizable under the provisions of the Cr.P.C., 1973. The provisions of bail or otherwise, shall apply on the Police, Juvenile Justice Board and concerned authority accordingly.
- Chapter-III Child in Need of Care and Protection
24.
Child Welfare Committee.
- (1)
The Government will constitute District Level Child Welfare Committees consisting of a Chairperson and following four other members, who will be appointed by the Government, namely :-
- (a)
A retired Judge or retired Deputy Secretary/Under Secretary to the Government having experience in Social Welfare who shall be the Chairperson of the Committee.

(b)

A representative from an Academic Body, with the background of Child Psychology, Education, Sociology or Home Science.

(c)

A representative of reputed Non-Governmental Organisations working in the area of Child Welfare.

(d)

A teacher or a doctor or a senior retired public servant who has been involved in work concerning Child Welfare.

(2)

The Chairperson of the Child Welfare Committee shall be at least a graduate with either of the qualifications given above.

(3)

The Child Welfare Committee shall have a tenure of three years and members shall be co-terminus with the tenure of the Committee.

(4)

A member of the Committee shall be eligible for appointment for a maximum of two terms and shall not be more than 65 years at the time of first appointment.

(5)

A member may resign, any time by giving one month's advance notice in writing to the Chairperson.

(6)

Any casual vacancy on the Committee may be filled up by appointment of another person and shall hold office for the remaining term of the Committee.

(7)

Members of the Committee shall be paid such travelling/meeting allowance or honorium as the State Government may decide from time to time.

25.

Procedure etc. in relation to Committee.

(1)

The Committee shall hold its sittings in the premises of a children's home and shall meet on at least three days a week. The quorum for the meeting shall be three which may include the Chairperson.

(2)

Any decision taken by an individual member, when the Committee is not sitting, shall require ratification by the Committee in its next sitting.

(3)

Final disposal of a case shall take place from the office of the Committee, by an order. The Committee shall take into consideration the age, physical and mental health background, opinion of the child and the recommendation of the case worker, prior to such disposal.

26.

Production of a Child before the Committee.

(1)

Any child in need of care and protection shall be produced before the Committee by the following

(i)

any police officer or Special Juvenile Police Unit or a designated police officer;

(ii)

any public servant;

(iii)

Childline, a registered voluntary organisation, or by such other voluntary organisation or an agency as may be recognized by the State Government;

(iv)

any social worker or a public spirited citizen authorised by the State Government; or

(v)

by the child himself.

(2)

(a)

When any person/organization authorized under sub-rule (i) above receives a child in need of care and protection, he/she/they may also produce the child before the Committee with the report of the circumstances under which the child came to their notice. Such children, above two years of age, shall be produced before the Committee within 48 hours of such admission, excluding the journey time by the organisation. For children under two years of age, the organization shall send a written report along with the photograph, within 48 hours of admission, excluding the journey time.

(b)

In case the Committee is not sitting, the child shall be kept in place of safety and provided with all basic facilities and adequate protection. Every possible effort shall be made to trace and associate the family and assistance of recognized voluntary organizations/childline may also be taken.

(c)

In case a recognized voluntary organization takes a child to the Committee, they shall also submit a report on the circumstances under which the child came to their notice, and efforts shall be made by them for tracing the family.

(d)

The Committee shall make arrangement to send the child to the designated place of safety, with age and sex appropriate facilities, pending inquiry.

(e)

The child may be escorted by the police officer, representative of the voluntary organization or by any other arrangement deemed appropriate by the Committee.

(f)

Names and addresses of all recognized children's homes along with its capacity should be listed with the Committee. Age and sex appropriate facilities as prescribed under Section 34 of the Act, shall also be mentioned in the list.

(g)

Child should be lodged in a home closest to where he/she belongs.

27.

Procedure for inquiry.

(1)

When a child is brought before the Committee, the Committee shall assign the case to a social worker/case worker/Child Welfare Officer/Officer-in-charge, as the case may be, of the home or any appropriate recognized agencies for conducting inquiry.

(2)

The direction for the inquiry under sub-rule (1) above must be in Form I.

(3)

The Committee shall direct the concerned person/organization the details/particulars to be enquired into for suitable rehabilitation. The inquiry must be completed within 4 months unless special circumstances do not permit to do so in the interest of the child. Under such circumstances written extension must be taken by the Inquiring Officer/agency under subsection (2) of Section 33 of the Act.

(4)

After completion of the inquiry at the end of the 4 months, if the child is under orders to continue in the children's home, the Committee shall carry out an annual review of the progress of the child in the home.

28.

Children's Home.

(1)

The Government/Voluntary Organizations shall set up separate homes for children in need of care and protection, in the manner prescribed below:-

(a)

While children of both sexes below 10 years, may be kept in the same home, separate facilities to be maintained for boys and girls above 5 years of age.

(b)

Separate children's homes should be set up for boys and girls in the age group 10-18 years.

(2)

Each Children's home should be a comprehensive child care centre. The primary objective of this centre should be to promote an integrated approach to child care by involving the community and local NGOs. The activities of the centre should focus on-

(a)

family based services such as foster family care, adoption and sponsorship;

(b)

specialized services in conflict or disaster affected areas to prevent neglect by providing family counselling, sponsorship, play groups, etc.

(c)

provision of childline and emergency outreach service through 1098, a free phone facility for children;

(d)

linking up with ICDS to cater to the needs of children below 6 years;

(e)

to establish linkages with organizations and individuals who can provide support services to children. These Centres should encourage volunteers to provide for various services for children and families to become guardian.

(3)

Each children's home shall have the following facilities :-

(a)

Physical infrastructure-It should include separate facilities for children in the age group of 0-50 years with appropriate facilities for the infants. The facilities to be created for children in the age group 6-10 years having separate dormitories for boys and girls. The standard of accommodation as prescribed in rule 9 shall apply. There should be adequate lighting, ventilation, heating and cooling arrangements, drinking water and toilets, in terms of age appropriateness and hygiene.

(b)

Clothing and Bedding according to season and age appropriate as per scale mentioned in rule 7.

(c)

Nutrition- The children shall be provided 4 meals including breakfast etc. in a day. The menu shall be prepared with the help of a nutritional expert/doctor to ensure balanced diet and variety in taste. Children may be provided special meals on holidays. The diet however, in case of infants and sick children shall be according to the requirement. The normal dietary scale for children up to 18 years shall be according to scale mentioned in rule 6.

(d)

Medical-The children's home shall have arrangement for the medical facility preferably with doctor and nurse. All children brought into the home shall be medically examined initially within 24 hours of arrival. The routine medical check up of the children must be done on monthly basis. The sick children shall constantly be under medical supervision. In the event of break out of contagious/ infectious diseases, segregation must be ensured.

The medical service shall include immunization facility as prescribed by the National Immunization Schedule. The home shall have networking with local doctor/hospitals for referral cases.

The medical record of each child shall be meticulously maintained in the file of the child. The record shall also include weight and height record, any sickness and treatment, and other physical/ mental problem if any.

(e)

Education- The home shall provide education to all children according to the age and ability, either both inside the home or outside, as per the requirement.

(f)

Vocational Training-Each home shall facilitate for useful vocational training under the guidance of trained instructors. The home shall develop networking with Institute of Technical Instruction (ITI), Jan Shikshan Sansthan, Government and Private Organization/ Enterprises, Agencies/NGO's with expertise, or placement agencies.

(g)

Counselling-Each home shall have the services of a trained counsellor. Services of Child Guidance Centres, Psychology and Psychiatric Departments or similar Agency may also be availed.

(h)

Recreation facilities- It must include indoor and outdoor games, music, television, picnic and outings, cultural programmes etc.

(i)

Care Plan- The in-charge, counsellor along with the child welfare officer, case worker, or social worker shall prepare a Care Plan for every child in the home. The care plan shall be reviewed from time to time for appropriate development and rehabilitation including options for restoration to family/foster care/adoption and review shall not be delayed beyond a year. The focus should be on providing family and community based re-integration programmes. Children should be consulted while determining their care plan.

(j)

Intake Procedure-Every new child who is brought to home shall immediately be taken charge of by the counsellor/child welfare officer/designated officer, as the case may be. The child shall be received with due care as provided under these rules, with dignity and loge. A brief orientation shall be given to the child on induction to remove any inhibition from the mind of the child. The child shall be immediately given bath, clothing, food etc. and medically examined. The designated officer shall enter the name of the child in the Admission Register and allocate appropriate accommodation facility. The photograph shall also be done immediately for records and the case worker shall begin the investigation and correspondence with the person, the child may have named. The Officer-in-charge shall see that the personal belongings of every child received by the home is kept in safe custody and recorded Personal Belonging Register and the item must be returned to the child when he leaves the home. The girl child shall be searched by a female member of the staff, and with due regard to decency. The articles mentioned under rule 14 shall also be prohibited in case of children's homes.

(k)

In the event of a child leaving the home without permission, the information shall be sent to the police and the family, if known. The detailed report along with the efforts to trace the child shall be sent to the committee for information in the subsequent sitting of the committee.

(l)

In the event of death of a child the circumstances of the death shall be recorded in the case file of the child by the case worker giving the cause of death and the death certificate shall be obtained from the attending doctor or hospital, as the case may be. The information shall be sent to the Committee and District Level Inspection Team, Registrar of Birth and Death, and the relative, if known. The last rites shall be performed according to the known religion of the child.

(m)

In the event of custodial rape and/or sexual abuse the action to be taken as follows :-

(i)

In case any resident makes any complaint or occurrence of such nature comes to the knowledge of the Officer-in-charge, a report shall be placed before the Child Welfare Committee, who in turn, will order for special investigation. The Child Welfare Committee shall direct the local Police-station to register case against the person found guilty under the relevant Section of the IPC.

(ii)

The Special Juvenile Police Unit will also take due cognizance of such occurrences and conduct necessary investigations.

(n)

In the event of any other crime committed in respect of residents, the Child Welfare Committee will take cognizance and arrange for necessary investigation to be carried out by Special Juvenile Police Unit.

(o)

Record Keeping-All the case files of the children maintained by the institutions and the Juvenile Welfare Committee shall be computerized and networked so that the data is centrally available.

29.

Inspection.

- The Government shall constitute State/district/city level inspection teams through Selection Committee, constituted under rule 24 for a period of 3 years to visit and oversee day-to-day function of the homes and give suitable directions to be followed. The team shall also make suggestions for the improvement and development for the institution. The team shall consist of minimum five members from representatives of Government, Local Authority, Child Welfare Committee,

medical and other experts, voluntary organizations and reputed social workers. The inspection visit will be carried out by not less than three members. The team may visit the homes either by prior intimation or by surprise. The team shall interact with the children during the visits to the institution to determine their well being and uninhibited feed-back. The follow up action on the findings and suggestion of the children shall be taken by all concerned authorities.

30.

Social Auditing.

- The Central or the State Government shall monitor and evaluate the functioning of the homes annually with the help of leading organizations working with the children, besides Autonomous bodies like National Institute of Public Co-operation and Child Development, Indian Council for Child Welfare, Indian Council for Social Welfare, Indian Social Institute, Childline India Foundation, National Institute of Social Defence, Central and State level Social Welfare Boards, School of Social Work etc.

31.

Shelter Homes.

(1)

For the children in urgent need of care and protection, such as destitute, street children, runaway children etc. the Government shall support creation of the requisite number of shelter homes/drop-in centres through voluntary organizations.

(2)

Such Homes/Centres shall have the minimum facilities of boarding, lodging besides the provision for fulfilment of basic needs in terms of clothing, food, health care and nutrition etc. Such children in crisis situations may live in short-stay homes which may have the requisite facilities for education, vocational training and recreation as well.

(3)

The Child Welfare Committees, Special Juvenile Police Units, Public Servants, Childlines, Voluntary Organizations, Social Workers and the children themselves may refer a child to such shelter homes. The legal requirements of investigation and disposal shall not apply in cases of children residing in the shelter home, except giving information to the committee and the police about the missing or homeless children besides initiating legal action in the interest of the child in terms of Act or other child related laws.

(4)

The services of Officer-in-charge, child welfare officer, social worker shall be provided for the proper care, protection, development, rehabilitation and reintegration needs of such children.

(5)

No child shall ordinarily stay in the home/drop-in-centre for more than a year, in case of Government funding.

32.

Transfer.

(1)

During the enquiry, if it is found that the child hails from the place outside the jurisdiction of the Committee, the Committee shall order the transfer of the child to the competent authority having jurisdiction over the place of residence of the child.

(2)

No transfer shall or ordinarily be proposed on the ground that the child has created problems or is difficult to be managed in the existing institution.

(3)

Transfer for restoration or enquiry for all proceedings in respect of a child from one State to any other may also be ordered by the Local Authority, after obtaining concurrence from the Child Welfare Committee. No child shall be transferred out of the district/city for the purposes of adoption without the concurrence of the Child Welfare Committee.

(4)

On receipt of transfer order from the local authority, the Officer-in-charge shall arrange to escort the child at the Government cost to the place/person as specified in the order. The child case file and records shall be sent along with the child.

Chapter-IV Rehabilitation and Social Reintegration

33.

Adoption.

(1)

Since the family is the best option to provide care and protection for children, adoption should be the first alternative for rehabilitation and social reintegration of children who are orphaned, abandoned, neglected and abused.

(2)

The guidelines on adoption issued by the Central Adoption Resources Agency (CARA) and Supreme Court judgements issued from time to time shall apply.

(3)

Government shall recognize children's homes or State run Government homes as adoption agencies for in-country adoption.

(4)

In the case of Inter-country adoption the procedure laid down by the CARA shall apply.

(5)

The scrutiny shall however be done independently by a recognized agency recognized for this purpose. The scrutinizing agency will examine all available information and verify the background of the child before making a recommendation to the Board for adoption of the child.

(6)

Any child eligible for adoption, residing in unrecognised homes, for the purpose of adoption, should be transferred to a recognised home.

(7)

An abandoned child can be given in adoption only when the Child Welfare Committee declares such a child to be legally free for adoption. An abandoned child shall be legally free for adoption when such an order is signed by at least two members of the Child Welfare Committee.

(8)

Before declaring the child as abandoned and certifying him/her as legally free for adoption, the Child Welfare Committee shall institute a due process of enquiry which shall include-

(a)

A thorough enquiry by the probation officer/case workers/police, as the case may be, will be submitted within a maximum period of one month.

(b)

Declaration by the placement agency stating that there has been no claimant for the child even after making notification in at least one leading newspaper including a regional language newspaper, TV and Radio announcement and after awaiting for a period of one month. This 1 month will run concurrently to the inquiry to be conducted and report to be given as mentioned under clause (a) above.

(c)

The Child Welfare Committee shall make a release order declaring the child legally free for adoption within the period of 6 weeks from the date of application in the case of children below the age of 2 years and 3 months in the case of children above that age.

(d)

No child above seven years who can understand and express her/his opinion shall be placed in adoption without his/her consent.

(9)

Role of licensed/recognized Government and non-Government agencies for adoption-

(a)

In the case of an abandoned child the recognized agency shall, within 48 hours, report to the Child Welfare Committee along with the copy of the report filed with the Police-station in whose jurisdiction the child was found abandoned.

(b)

The adoption agency may initiate the process of clearance at the earliest, in the case of abandonment of children, for the purpose of adoption within a period of two months for placing application before the Committee for declaring the child legally free for adoption.

(c)

In case of a child surrendered by her/his biological parent/parents by executing a document of surrender as prescribed, the adoption agency shall make an application directly to the Juvenile Justice Board for giving the child in adoption. However, the adoption agencies shall wait for completion of two months reconsideration time given to the biological parent/parents. However, efforts may be made for counselling the parents so as to persuade them to retain the child. If parents still are unwilling to retain then such children should be kept initially in foster care or arrange for their sponsorship.

(d)

In case of a surrendered/abandoned child who is legally free for adoption, the licensed agency shall have discretion to place the child in pre-adoption foster care under intimation to the Juvenile Justice Board within one week on its placement pending the final order.

(10)

Role of Juvenile Justice Board :

(a)

After receiving an application from a recognized agency for adoption, the Board shall call for independent enquiry by recognized scrutiny agency. The scrutiny report shall be submitted within a period of two weeks.

(b)

The Board shall undertake a process of enquiry which will include interviewing the prospective parents, verifying the documents and scrutiny reports. If the Board is satisfied that the placement is in the best interest of the child, it will pass a final order giving permanent custody to the adoptive parent/parents. An order of adoption shall be signed by the Principal Magistrate in presence of one of the two members of the Board.

(c)

The Board shall fix the date of birth, in the best interest of the child and shall pass order to the appropriate authority to issue a regular birth certificate for the child giving the name(s) of the adoptive parent(s) as if in the case of natural born children.

(d)

As far as possible the time taken for passing an adoption order shall not exceed two months from the date of filing. The order shall also include provision for a periodic follow up report either by the probation officer/case worker or adoption agency to ensure the well being of the child. The period of such follow up shall be three years, six monthly in the first year and annually for the subsequent two years.

34.

Foster Care.

(1)

A child to be placed under short term foster shall be done according to the procedure laid down under clause (d) of sub-rule (9) of rule 33 above. The short-term foster care period shall not exceed four months.

(2)

The temporary foster care shall be carried out as given in subsection (2) of Section 42 of the Act by the competent authority under supervision of a probation officer/case worker/social worker, as the case may be, in Form II. The total period of temporary foster care shall not exceed five years.

(3)

The following criteria be applied for selection of families for temporary foster care :

(a)

foster parent(s) should have stable emotional adjustment within the family;

(b)

foster parent(s) have an income to meet their needs and not be dependent on the foster care maintenance payment. The monthly family income shall not be less than Rs.5,000 per month;

(c)

medical reports of all the members of the family residing in the premises should be obtained including checks on HIV, TB and Hepatitis B to determine that they are medically fit. An update should be done at regular intervals of not less than once in a calendar year;

(d)

the foster mother should have experience in child caring and the capacity to provide good child care;

(e)

the foster mother should be physically, mentally and emotionally stable;

(f)

the home should have adequate space and physical facilities;

(g)

the foster care family should be willing to follow rules laid down including regular visits to pediatrician, maintenance of child health, record etc;

(h)

the family should be willing to sign an agreement and to return the child to the agency whenever called to do so;

(i)

the foster mother should be willing to attend training/orientation programmes;

(j)

the foster parent(s) should be willing to take the child for regular (at least once a month in the case of infants) check ups to a pediatrician approved by the agency.

(4)

There should be regular monitoring and supervision carried out by the Probation Officer/Child Welfare Officer, as the case may be.

35.

Sponsorship.

(1)

The home shall promote a sponsorship programme as laid down in Section 43 of the Act.

(2)

The home receiving sponsorship, shall maintain proper and separate accounts of all the receipts and payments for the programme.

36.

After Care Organisation.

(1)

After Care Organization, as outlined in the Act, are to take care of juveniles or children after they leave special homes and children's homes. These After Care Organizations are essential for all children/youth between the ages of 18-20 years.

(2)

Objective of these homes would be to enable such children to adapt to the society. During their stay in these transitional homes these children should be encouraged to move away from an institution-based life to a normal one.

(3)

Target groups would include juveniles or children who have either left special homes or children's homes.

(4)

The key components of the model include setting up of temporary homes for a group of youths, who can be encouraged to learn a trade and contribute towards the rent as well as the running of the home. There should also be provision for a peer counsellor. This counsellor will be in regular contact with these youths to discuss their rehabilitation plans and provide creative outlets for their energy, to tide over crisis periods in their life.

(5)

The programmes under the scheme would include :

(i)

Facilitating employment generation for these youths would be a key programme. After a youth has saved a sufficient amount, he/she can be encouraged to stay in a place of his/her own and move out of the group home. Additionally the youth could continue staying in the home and return the deposit to the NGOs. The youth learning a vocational trade could be given a stipend. This would be stopped once the youth gets a job.

(ii)

Loans to these youth to set up entrepreneurial activities would also be arranged.

(iii)

A peer counsellor would also be available for youth at these homes. Since at this stage of life they can be lured into

crime or drug dependence and such other habits or deviant behaviour, hence the need for a counsellor.

(6)

Strategy for children who have been juveniles or have left special homes would be to help them return to normal life and adjust and adapt to their environment. There should be provision for vocational training of these children to enable them to sustain themselves through their own efforts.

(7)

Structure- One peer counsellor can be in-charge of a cluster of 5 homes. Each home would house 6-8 youths who could opt to stay together on their own.

Chapter-V Miscellaneous

37.

Recognition of fit person or fit institution.

(1)

Any individual or a suitable place or institution, the occupier or manager of which is willing temporarily to receive a juvenile/child in need of care, protection or treatment for so long a period as may be necessary, may be recognized by the Competent Authority as fit person or fit institution.

(2)

Any association or body of individuals, whether incorporated or not, established for or having for its object the reception or protection of juveniles or children or the prevention of cruelty to juvenile and which undertakes to bring or to give facilities for bringing up any juvenile entrusted to its care in conformity with the religion of his birth, may be included within the meaning of fit institution.

(3)

A list of names and the addresses of fit persons and fit institutions approved by the Competent Authority shall be kept in the office of the Board/ Committee and shall be used when necessary.

(4)

After committal of juvenile/child by the competent authority to an institution recognised as a fit institution with collateral branches, the manager of such institution may send the juvenile to any of the branches of such institution after giving an intimation to the competent authority under whose orders the juvenile/child was committed.

(5)

Before declaring any person/institution as fit person/fit institution, the competent authority shall hold due enquiry and only on satisfaction shall give recognition as such.

38.

Certification/recognition and transfer of Institutions.

(1)

(a)

If the management of any organization desires that its organization may be certified or recognised under the Act, the same shall make a written application together with a copy of each of the rules, bye-laws, articles of association, list of members of the society/association running the organization, office bearers and a statement showing the status and past record of social or public service of the organization and the society running the organisation to the Government who shall, after verifying the provisions made in the organization for the boarding and lodging, general health, educational facilities, vocational training and treatment services may grant certification/recognition under Sections 8, 9, 34, 37 and 44 of the Act, as the case may be, on the condition that the organization comply with the standards or services as laid down under the Act and the rule framed thereunder from time to time and to ensure an all-round growth and development of juvenile/child placed under its charge;

(b)

The Government may transfer the management of any State run institution under this Act to a voluntary organisation of repute who has the capacity to run such an institution and certify that said voluntary organization as a fit institution to own the requisite responsibilities. This should be done under a Memorandum of Understanding for a specified period of time.

(c)

The institution and the infrastructure already available with the Government in relation to the earlier Act of 1986 shall be suitably used for implementing this Act.

(2)

The Government may, if dissatisfied with the conditions, rules, management or of the organisation certified or recognized under the Act, at any time by notice served on the manager of the organisation declare that the certificate or recognition of the organization as the case may be, shall stand withdrawn as from a date specified in the notice and from the said date the organisation shall cease to be an organization certified or recognised under Sections 8, 9, 34, 37 or 44 of the Act, as the case may be.

(3)

The decision to withdraw or to restore the certificate, or recognition of the organisation may be taken on the basis of a thorough investigation by a specially constituted advisory board under Section 62 of the Act. On the report of the advisory board, the Officer-in-charge of the home shall be asked to show cause to give an explanation within 30 days.

(4)

When an organisation ceases to be an organisation certified or recognized under Sections 8, 9, 34, 37 or 44 of the Act, the juvenile/child kept therein shall be under orders of the designated officer, empowered in this behalf by the Government be either

(a)

discharge absolutely or on such conditions as the officer may impose; or

(b)

transfer to some other institution established, certified or recognised under Sections 8, 9, 34, 37 or 44 of the Act, in accordance with the provisions of the Act and rules relating to discharge and transfer. Intimation of such discharge or transfer shall be given to the Board or the Committee, as the case may be.

39.

Grant-in-aid to certified or recognised organisation.

(1)

An organisation certified or recognised under Sections 8, 9, 34, 37 or 44 of the Act may during the period of certification or recognition is in force, may apply for grant-in-aid by the Government for maintenance of juvenile/child received by them and or the provisions of the Act and for expenses incurred in their education, treatment, vocational training, development and rehabilitation. The grant-in-aid may be admissible at such rates, which shall be able to meet the prescribed norms in such manner and subject to such conditions as may be mutually agreed by both parties.

(2)

In case of transfer of management of Government run homes under Sections 8, 9, 34 and 37 of the Act to voluntary organisation, the same budget which the Government was spending on that home, shall be given to the voluntary organisations as grant-in-aid under the memorandum of understanding signed between both parties describing other role and obligations.

40.

Admission of outsiders.

- No stranger shall be admitted to the premises of the institution, except with the permission of the Chief Inspector or Officer-in-charge.

41.

Identity Photos.

- On admission to home established under the Act, every juvenile/child shall be photographed and three copies of the photograph shall be obtained. One photograph shall be kept in the case file of juvenile/child, one shall be fixed with the index card and the third shall be kept in an album serially. The negative shall be kept in another album.

42.

Police Officers to be in plain clothes.

- While dealing with juvenile/child under the provisions of the Act or these rules, except at the time of arrest, the Police Officer shall wear plain clothes and not the police uniform.

43.

Prohibition of the use of handcuffs and fetters.

- No juvenile/child dealt with under the provisions of the Act of these rules shall be handcuffed or fettered.

44.

Visitor's Book.

- A Visitor's Book shall be maintained in which the persons visiting the home shall record the dates of their visits with remarks or suggestions, which they may think proper. The Officer-in-charge shall forward a copy of every such entry to the designated authority with such for the local authority with such remarks as he may desire to offer in explanation or otherwise and thereon the designated authority shall issue such orders as may be deemed necessary.

45.

Maintenance of Registers.

- The Officer-in-charge shall maintain in the office such registers and forms as may be prescribed by the Act and Rules.

46.

Procedure for sending a juvenile/child outside the jurisdiction of the competent authority.

(1)

In the case of juvenile/child whose ordinary place of residence lies outside the jurisdiction of the competent authority and if the competent authority deems it necessary to take action under Section 50 it shall direct a probation officer to make enquiries as to the fitness and willingness of the relative or other person to receive the juvenile/child at the ordinary place of residence and whether such relative or other fit person can exercise proper care and control over the juvenile/child.

(2)

Any juvenile/child who is a foreign national and who has lost contact with the family shall also be entitled for protection. The juvenile/child shall be repatriated, at the earliest, the country in co-ordination with the Ministry of External Affairs and respective Embassies or High Commission.

(3)

On being satisfied on the report of the Probation Officer/Case Worker/Child Welfare Officer, as the case may be, the competent authority may send the juvenile/child if necessary on execution of a bond by the juvenile as nearly as in Form V to the said relative or fit person or giving an undertaking by the said relative or fit person or giving an undertaking by the said relative of fit person in Form VI.

(4)

A copy of the order passed by the competent authority under Section 50 shall be sent to

(a)

the probation officer who was directed to submit a report under sub-rule (1)

(b)

the probation officer, if any, having jurisdiction over the place where the juvenile/child is to be sent,

(c)

the competent authority having jurisdiction over the place where the juvenile/child is to be sent, and

(d)

the relative or the person who is to receive the juvenile/child.

(5)

Any breach of a bond or undertaking or of both given under sub-rule (3) above shall render the juvenile/child liable to be brought before the competent authority, who may make an order directing the juvenile/child to be sent to home.

(6)

During the pendency of the orders under sub-rule (3), the juvenile/child shall be sent by the competent authority to an observation home/children home.

(7)

In the case of a juvenile/child where the competent authority deems it expedient to send the juvenile/child back to his ordinary place of residence under Section 50, the competent authority shall inform the relative or the fit person who is to receive the juvenile/child accordingly and shall invite the said relative or fit person to come to the home to take charge of the juvenile/child on such date as may be specified by the competent authority.

(8)

The competent authority inviting the said relative or fit person under sub-rule (6) may also direct, if necessary, the payment to be made by the Officer-in-charge of the home of the actual expenses of the relative or fit person's journey both ways by the appropriate class and the juvenile/child's journey from the home to his ordinary place of residence, at the time of sending the juvenile/child.

(9)

If the relative of the fit person fails to come to take charge of the juvenile/child on the specified date the juvenile/child shall be taken to his ordinary place of residence by the escort of the observation home, in the case of a girl at least one escort shall be a female.

47.

Mode of dealing with juvenile/child suffering from dangerous diseases or mental complaint.

(1)

When a juvenile/child kept in home under the provisions of the Act or placed under the care of a fit person or a fit institution is found to be suffering from a disease requiring prolonged medical treatment or physical or mental complaint that will respond to treatment or is found addicted to a narcotic drug or psychotropic substance, the juvenile/child may be removed by an order of the authority empowered on this behalf to an approved place set up for such purpose for the remainder of the term for which he has to be kept in custody under the order of the competent authority or for such period as may be certified by Medical Officer to be necessary for the proper treatment of the juvenile/child.

(2)

Where it appears to the authority ordering the removal of the juvenile/child under sub-rule (1) above that the juvenile/child is cured of the disease or physical or mental complaint he may, if the juvenile/child is still liable to be kept in custody, order the person having charge, send juvenile/child to the home or fit person from which or from whom he was removed or if the juvenile/child is no longer liable to be kept in home, order him to be discharged.

(3)

Where action has been taken under sub-rule (1) in the case of a juvenile/child suffering from an infectious or contagious disease, the authority is empowered under sub-rule (1), before restoring the said juvenile/child to his partner in marriage or to the guardian, as the case may be, shall, where it is satisfied that such action will be in the interest of the said juvenile/child, call upon the partner in marriage or the guardian, as the case may be, to satisfy it that such partner or guardian will not reinfect the juvenile/child.

(4)

If there is no organisation either within the jurisdiction of the competent authority or nearby State for sending the juvenile/child suffering from dangerous diseases as required in Section 58 of the Act, necessary organisation shall be set up by the Government at such places as may be deemed fit by it.

48.

Personnel organisation.

(1)

The personnel strength of a home shall be determined according to the duty, posts, hours of duty per day as the base for each category of staff. The institutional organisational set up shall be fixed in accordance with the size of the home, the capacity, work load, distribution of functions and requirements of programmes.

(2)

The whole time staff in a home may consist of Superintendent/ Project Manager, Probation Officer (in case of Observation Home/Special Home), Case Workers (in case of Children's Home/Shelter Home/Affair care organisation) Child Welfare Officers, Counsellor, Educator, Vocational Training Instructor. Medical Staff, Administrative Staff, Care Takers, House Father/ House Mother, Store Keeper, Cook, Helper, Washerman, Safai Karmachari, Gardner as required.

(3)

The part-time staff shall include Psychiatrist, Psychologist, Occupational Therapist and other professionals as may be required by time to time.

(4)

The staff of the home shall be subject to control and overall supervision of the Superintendent/Project Manager, who by order shall determine their specific responsibilities and shall keep the concerned authority informed of such orders made by him from time to time. The duties and responsibilities of the staff under him shall be fixed in keeping with the statutory requirements of the Act. The Superintendent or the Project Manager and such other staff may be required, shall live in the quarters provided for them within the premises of the home.

(5)

The number of posts in each category of staff shall be fixed on the basis of capacity of the institution. The staff shall be appointed in accordance with the educational qualifications, training, experience, etc., required for each category. The

suggested staffing pattern for an institution with a capacity of 100 juveniles/ children could be as mentioned below-	
Sl. No.	
Designation	
No. of posts	
1	
Superintendent/Project Manager	
1	
2	
Counsellor	
2	
3	
Case Workers/Probation Officer	
3	
4	
House Mother/House Father	
4	
5	
Educator	
2(Voluntary/Part-time)	
6	
Vocational Instructor	
1	
7	
Doctor	
1(Part-time)	
8	
Paramedical staff	
1	
9	
Store Keeper-cum-Accountant	
1	
10	
Driver	
1	
11	
Cook	
2	
12	
Helper	
2	
13	
Sweeper	
2	
14	
Art & Craft-cum-Music Teacher	
1(Part-time)	
15	
Gardener	
1(Part-time)	
Total	
25	

The number of posts in the category of Counsellor, Case Worker/ Probation Officer, House Father/House Mother, Educator and Vocational Instructor shall proportionally increase with the increase in the capacity of the institution.

49.

Special Juvenile Police Unit and Juvenile/Child Welfare Officer.

(1)

The Government shall appoint Juvenile Police Units at the district and a Juvenile/Child Welfare Officer shall be designated in term of Section 63 of the Act at the level of Police-station.

(2)

The Juvenile Police Unit at the district level shall function under a Juvenile Police Officer (of the rank of Inspector of Police) and two paid social workers of whom one shall be a woman and another preferably child expert or having relevant experience.

(3)

The Juvenile Police Unit at other places would be aided by two or more honorary social workers.

(4)

The Special Juvenile Police Units would be assisted by recognised voluntary organisations who will help them in identifying juveniles and helping the juveniles/children under the Act.

50.

Probation Officer.

- To augment the Existing Probation Service, Probation Officers may be appointed from voluntary organisation and social workers found fit for the purpose by the competent authority. Similarly honorary and voluntary probation services may also be co-opted into the implementation machinery by the orders of the competent authority.

51.

Responsibilities of the local authorities.

- The Government may authorise Collector and District Magistrate of the district concerned to carry out the following responsibilities, namely :-

(a)

Recommending the panel of names to the Selection Committee for appointment of social workers for the Board, Chairman and members of the Child Welfare Committee, District and City Advisory Boards under rule 24.

(b)

Shall designate its responsibilities for the Inspection Committee under sub-section (2) of Section 35 of the Act.

(c)

Shall visit the institution and make suggestions for the improvement and development of institutions under sub-section (2) of Section 35 of this Act.

(d)

Shall give order for inter-State transfer of juvenile/child with prior intimation to Board/Committee under Section 57 of the Act.

(e)

Raise funds for the maintenance, education, training and rehabilitation of juvenile/child under Sub-sections (1) and (3) of Section 62 of the Act.

52.

Key duties of the Officer-in-charge of Homes.

- The general duties, functions and responsibilities of the Officer-in-charge will be as follows :-

(a)

Providing homely atmosphere of love, affection, care, development and welfare of juveniles/children.

(b)

Planning implementation and co-ordinating all institutional activities, programmes and operations.

(c)

Maintaining minimum standards in the Home.

(d)

Monitoring of juveniles/children, as the case may be, training and treatment programmes and correctional activities.

(e)

Supervision over juveniles/children discipline and moral well-being.

(f)

Allocation of duties to personnel.

(g)

Attending to personnel welfare and staff discipline.

(h)

Preparation of budget and control over financial matters.

(i)

Supervision over office administration.

(j)

Monthly office inspection.

(k)

Daily inspections and round of institution.

(l)

Inspecting and tasting food prepared for juvenile/child.

(m)

Take prompt action to meet emergencies.

(n)

To take appropriate rehabilitation measures.

53.

Key duties of Probation Officer.

(1)

On receipt of information from the Officer-in-charge, the Special Juvenile Police Unit under sub-section (b) of Section 13, the Probation Officer shall inquire into the antecedents and family history of the juvenile/child and such other materials, circumstances, as may be necessary and submit a social investigation report as early as possible in Form VIII to the Board.

(2)

Every Probation Officer shall carry out all directions given by a Board/Committee or concerned authority and shall perform the following duties

(a)

To make inquiries regarding the home and school conditions, conduct, character and health of juvenile/child under their supervision;

(b)

To attend regularly the proceeding of Juvenile Justice Board and submit reports;

(c)

To maintain diary case file and such register as may be prescribed from time to time;

(d)

To visit regularly the residence of the juvenile/child under their supervision and also places of employment or school attended by such juveniles and to submit regularly fortnightly reports as prescribed in Form IX;

(e)

To accompany juveniles/children wherever possible, from the office of the board to observation home, special home, children's home or fit person, as the case may be;

(f)

To bring before the board/committee, immediately juveniles/children who have not been of good behavior during the period of supervision;

(g)

Follow-up of juveniles or children after their release from the organisations and extending help and guidance to them;

(h)

Establishing linkages with voluntary workers and organisations to facilitate rehabilitation and social reintegration of juveniles/ children and to ensure the necessary follow-up;

(i)

Ensuring that the children's need of food and cloth are met as per standard;

(j)

Ensure the cleanliness of the premises and maintenance of physical infrastructure including provisions of water and electricity etc.

(3)

The Probation Officers shall not employ a juvenile/children under their supervision for their own purposes or take any private service from them.

54.

Key duties of Case Workers/Child Welfare Officer.

- The general duties, functions and responsibilities of Case Workers/Child Welfare Officer shall be as follows :-

(a)

Making social investigation of the juvenile/child through personal interview and from the family, social agencies and other sources.

(b)

Clarifying problems of the juvenile/child and dealing with their difficulties in institutional life.

(c)

Participating in the orientation, monitoring, education, vocational and rehabilitation programmes.

(d)

Establishing co-operation and understanding between the juvenile/ child and the Officer-in-charge.

(e)

Assisting the juvenile/child to develop contacts with family and also providing assistance to family members.

(f)

Participating in the pre-release programme and helping the juvenile/ child to establish contacts which can provide emotional and social support to juvenile/child after their release.

(g)

Ensuring that the children's need of food and cloth are met as per standard.

(h)

Ensure the cleanliness of the premises and maintenance of physical infrastructure including provisions of water and electricity etc.

55.

Key duties of House Father/Houses Mother.

- The general duties, functions and responsibilities of care takers shall be as follows :-

(a)

Handling juvenile/child with love and affection.

(b)

Taking proper care and welfare of juvenile/child.

(c)

Maintaining discipline among the juveniles/children.

(d)

Maintenance, sanitation and hygiene.

(e)

Implementing daily routine in an effective manner and ensuring children's involvement.

(f)

Looking after the security and safety arrangements of the home.

(g)

Escorting juveniles/children whenever they go out of the home.

56.

Training of personnel.

- The Government/Officer-in-charge shall provide for training of personnel of each of category of staff in keeping with their statutory responsibilities and specific jobs requirements. The training programme shall include

(a)

Orientation and Training of the newly recruited staff.

(b)

Refresher training courses for every staff member at least once in every five years.

(c)

Staff conferences, seminars, workshops, along with the various components/functionaries of JJ system, Government etc., at various levels of the personnel organisation.

57.

Advisory Boards.

(1)

The Government shall constitute Advisory Board at various levels for a period of 3 years. The Government shall constitute State Advisory Board, District Advisory Board and the City Advisory Board. All the Boards shall hold at least two meetings in a year. These Advisory Boards shall also inspect the various institutional or non-institutional services in their respective jurisdictions and the recommendations made shall be acted upon by the Government and Local Authorities.

(2)

The Government shall set up State Level Advisory Board consisting of members of the competent authority, academic institutions, locally respectable and spirited citizens, representatives of Non-Government Organisations and representative of Social Welfare Department.

(3)

Termination, resignation or vacancy caused and appointment of new member therein shall be done in the manner as the Government thinks fit.

58.

Openness and transparency.

(1)

All the Children's Homes shall be open to visitors with the permission of the Superintendent/Project Manager, particularly the representatives of local self-Government, voluntary organisations, social workers, researchers, medicos, academicians, prominent personalities, media and any other person, as the Superintendent/Project Manager considers appropriate keeping in view the security welfare and the interest of the child. The Superintendent of the Home shall encourage active involvement of local community in improving the conditions in the Homes, if the members of the community want to serve the institutions or want to contribute through their expertise.

(2)

The Superintendent/Project Manager shall maintain a visitors' book. The remarks of the visitors shall be considered by the Advisory Inspecting Authority.

(3)

While visiting an institution, the visitors will not say or do anything that undermines the authority of the Superintendent/Project Manager or is in contravention of law or rules or impinges on the human dignity of child.

(4)

The visitors may be allowed to visit observation homes and special homes also with the permission of the competent authority.

59.

Juvenile Justice Fund.

(1)

The Government shall create a fund at State Level under Section 61 of the Act to be called the 'Juvenile Justice Fund' (hereinafter in this rule referred to as fund) for the welfare and rehabilitation of the juvenile dealt with under the provisions of the Act. Besides voluntary donation, the Central Government shall also make contribution to State Level Juvenile Justice Fund.

(2)

The fund shall be applied :-

(a)

to implement programmes for the welfare and rehabilitation of juvenile/children;

(b)

to pay grant-in-aid to non-official organisations.

(c)

to meet the expenses of State Advisory Board and its purpose;

(d)

to do all other things that are incidental and conducive to the above purposes.

(3)

The management and administration of the fund, will be under the control of the State Advisory Board as required under sub-section (3) of Section 61 of the Act.

(4)

The assets of the fund shall include all such grants and contributions, recurring or non-recurring, from the Central and State Governments or any other statutory or non-statutory bodies set up by the Central or State Government as well as the voluntary donations from any individual or organisation.

(5)

Withdrawals shall be made by cheques or requisitions, as the case may be, signed by the Secretary-Treasurer in the case of amounts not exceeding Rs.1.000 (Rupees one thousand) and signed duly by the Secretary-Treasurer and other member of the Board of Management to be nominated by the State Advisory Board.

(6)

Regular accounts shall be kept of all money and properties and all incomes and expenditure of the Fund and shall be audited by notified firm of Chartered Accountants or any other recognised authorities as may be appointed by the Board. The auditors shall also certify that the expenditure from the funds shall be kept by the Secretary-Treasurer. All contracts and other assurances shall be in the name of the Board of Management and signed on their behalf by the Secretary-Treasurer and one Member of the Board of the Management authorised by it for the purpose.

(7)

The Board of Management shall invest the proceeds of sale or other disposal of the property as well as any money or property not immediately required to be used to serve the objective of the Fund in any one or more of the modes of investment for the time being authorised by law for the investment of trust moneys as the Board of Management may think proper.

(8)

The Board of Management may delegate to one or more of the members such of its powers, which in its opinion are merely a procedural arrangement.

60.

Disposal of records/documents.

- The records/documents in respect of juvenile/child shall be kept in safe place for a period of 7 years and thereafter be destroyed with the help of Juvenile Justice Board/Child Welfare Committee.

61.

Repeal and Saving.

- The Orissa Juvenile Justice Rules, 1987 is hereby repealed :

Provided that notwithstanding such repeal any action taken, order issued, bye-laws made under the provisions of these rules shall, in so far as it is not inconsistent with the provisions of these rules, be deemed to have been taken, issued or made under the provisions of these rules.

Form I

Vide sub-rule (6) of Rule 22

To

Probation Officer/Person-in-charge,

Voluntary Organisation/Social Worker/Case Worker.

Whereas (1) a report/complaint under Section.....of the Juvenile Justice (Care and Protection of Children) Act, 2000 has been received from.....in respect of (name of juvenile/child) son/daughter of.....residing at.....

(2)

.....son/daughter of residing at.....has been produced before the Board/Committee under Section of the Juvenile Justice (Care and Protection of Children) Act, 2000.

You are hereby directed to enquire into the character and social antecedents of the said juvenile and submit your social investigation report on or before.....or within such time allowed to you by the Board/Committee.

Dated this.....day of.....20.....

Board/

Seal

(Signature)

Principal Magistrate, Juvenile Justice

Chair-person, Child Welfare Committee

Form II

Vide sub-rule (7) of Rule 22

Supervision Order

When the Juvenile is placed under the care of a parent, guardian or other fit person

Profile No.....of.....26.....

Whereas (name of the juvenile/child) has this day found to have committed an offence and has been placed under the care of

(name)

.....(address) on executing a bond by the said and the Court is satisfied that it is expedient to deal with the said juvenile/child by making an order placing him/her under supervision.

It is hereby ordered that the said juvenile be placed under the supervision of.....Probation Officer/Case Worker, for a period of.....subject to the following conditions

1. that the juvenile/child along with the copies of the order and the bond executed by the said will be produced before the Probation Officer/ Case Worker named therein.....;
2. that the juvenile/child will be submitted to the supervision of the Probation Officer;
3. that the juvenile/child reside at for a period of ;
4. that the juvenile/child will not be allowed to quit the district jurisdiction of.....without the permission of the Probation Officer/Case Worker;
5. that the juvenile/child will not be allowed to associate with bad characters;
6. that the juvenile/child will live honestly and peacefully and will go to school regularly/endeavour to earn and honest livelihood;
7. that the juvenile/child will attend the attendance centre regularly;
8. that the person under whose care the juvenile/child is placed will arrange for the proper care, education and welfare of the juvenile/child;
9. that the preventive measures will be taken by the person under whose care the juvenile/child is placed to see that the child does not commit any offence punishable by any law in force in India;
10. that the juvenile/child will be prevented from taking narcotic drugs or psychotropic substances or any other intoxicants;
11. that the directions given by the Probation Officer/Case Worker from time to time, for the due observance of the conditions mentioned above, will be carried out.

Dated this.....day of.....20.....

Board/

(Signature)

Principal Magistrate, Juvenile Justice

Chair-person, Child Welfare Committee

Additional conditions, if any, may be inserted by the Juvenile Justice Board/ Child Welfare Committee.

Form III

See Rule 22(8)

Order of detention under sub-section of Section sub-section of Section and sub-section of Section.....

To

The Officer-in-charge/Project Manager.

Whereas on the day of 20 (name of the juvenile/child) son/daughter of aged.....residing at.....being found in

Profile No.....to be juvenile in conflict with law/child in need of care and protection under Section is order by me

Principal Magistrate, Juvenile Justice Board/Chair-person, Child Welfare Committee, under Section of Juvenile Justice Act, 2000 to be kept in the Special Home/Children Home/Shelter Home for a period of.....

This is to authorise and require you to receive the said juvenile/child into your charge, and to keep him/ her in the Special Home/Children Home/Shelter Home.....for the aforesaid order to be there carried into execution according to law.

Given under my hand and the seal of Juvenile Justice Board/Child Welfare Committee

This day of.....20.....

(Signature)

Principal Magistrate, Juvenile Board/

Chair-person, Child Welfare Committee

Encl.-

Copy of the judgement, if any, of orders, particulars of home and previous record.

Strike which is not required.

Previous history under the Juvenile Justice (Care and Protection of Children) Act, 2000.

Date

Order passed including period of detention, if
any

Section

Competent Authority

Form IV

Vide sub-section of Section.....

Bond to be executed by a Parent/Guardian/Relative or fit person in whose care a child is placed under Clause (e), sub-section (1) of Section 15/ sub-section (3) of Section 39.

Whereas, I.....being the parent, guardian, relative or fit person under whose care (Name of the juvenile/child) has been ordered to be placed by the Juvenile Justice Board/Child Welfare Committee.....have been directed by the said Juvenile Justice Board/Child Welfare Committee to execute a bond in the sum of Rs.....(Rupees.....) with one surety*/two sureties. I hereby bind myself on the said.....being placed under my care I shall have the said.....properly taken care of and I do further bind myself to be responsible for the good behaviour of the said and to observe the following conditions for a period of.....years commencing from.....

(1)
that I shall not change my place of residence without giving previous intimation in writing to the Juvenile Justice Board/Child Welfare Committee through the Probation Officer/Child Welfare Officer;

(2)
that I shall not remove the said...from the limits of the jurisdiction of the Juvenile Justice Board/Child Welfare Committee without previously obtaining the written permission of the Board/Committee;

(3)
that I shall send the said.....daily to school/to such daily work as is approved by the Board/Committee unless prevented from so doing by circumstances beyond my control;

(4)
that I shall send the said to an Attendance Centre regularly unless prevented from so doing by circumstances beyond my control;

(5)
that I shall report immediately to the Board/Committee whenever so required by it;

(6)
that I shall produce the said.....misbehaves or absconds from my care;

(7)
that I shall render all necessary assistance to the Probation Officer/ Case Worker to enable him to carry out the duties of supervision;

(8)
in the event of my making default herein, I bind myself to forfeit to Government the sum of Rs (Rupees.....).

Dated this.....day of.....20....

Before me signed

Signature of person executing the bond

Additional conditions, if any, by the Juvenile Justice Board/Child Welfare Committee may be entered numbering them properly.

*(Where a bond with sureties is to be executed add)

I/We..... of..... (place of residence with full particulars).....hereby declare myself, surety/sureties for the aforesaid.....(Name of the person executing the bond).....do and perform and in case of his making fault therein; I/We hereby bind myself/ourselves jointly said severally to forfeit to Government the sum of Rs.....dated this the.....day of 20 in the presence of:

(Signed)

Form V

See sub-rule (3) of Rule 46

Bond to be signed by juvenile/child who has been ordered under Clause of sub-section..... of Section of the Act.

Whereas, I.....inhabitant of.....(give full particulars such as house No., road, village/town, tehsil, district, state) have been ordered to be sent back to my native place by the Juvenile Justice Board/Child Welfare Committee.....under Section of the Juvenile Justice (Care and Protection of Children) Act, 2000 on my entering into a bond under sub-rule of Rule..... of the Juvenile Justice (Care and Protection of Children) Rule, 20.... to observe the conditions mentioned herein below. Now, therefore, I do solemnly promise to abide by these conditions during the period.....

I hereby bind myself as follows

1. That during the period.....I shall not ordinarily leave the village/town/district to which I am sent and shall not ordinarily return to.....or go anywhere also beyond the said district without the prior permission of the Board/Committee.
2. That during the said period I shall attend work/school in the village/ town or in the said district to which I am sent.
3. That in case of my attending work/school at any other place in the said district I shall keep the Board/Committee informed of my ordinary place of residence.

Form VI

Vide sub-rule (3) of Rule 46

I.....resident of.....(give full particulars such as house No./road, village/town, district, State) do hereby declare that I am willing to take charge of.....aged.....under the orders of the Juvenile Justice Board/Child Welfare Committee.....subject to the following terms and conditions :

(i)

If his/her conduct is unsatisfactory I shall at once inform the Competent Authority.

(ii)

I shall do my best for the welfare and education of the said.....as long as he/she remains in my charge and shall make proper provision for his/her maintenance.

(iii)

In the event of his/her illness, he/she shall have proper medical attention in the nearest hospital.

(iv)

I undertake to produce him/her before the Competent Authority when so required.

Dated this day of.....20.....

Signature

Signature and address of witness(es)

Form VII

Vide sub-rule(4) of Rule 19

I.....name and designation of the releasing authority.....State Government/UT Admission, do by this order permit.....son/daughter of.....caste.....residence.....number..who was ordered to be detained in a observation home, special home, children home, shelter home, after care home by the Juvenile Justice Board/Child Welfare Committee.....under Section of the Juvenile Justice (Care and Protection of Children) Act, 2000, for a term of on the day of.....2.....and who is now in the.....homes, at.....to be discharged from the said on condition that he/she be placed under the supervision and the authority of during the

remaining position of the aforesaid period of stay.

This order is granted subject to the conditions endorsed hereon, upon the breach of any which it shall be liable to be revoked.

Dated :Place :

Signature and Designation of Releasing Ordering Authority

Conditions :

1. The released person shall proceed to.....and live under the supervision and authority of.....until the expiry of the period of his/her detention unless the remission is sooner cancelled.
2. He/she shall not, without the consent of the remove himself/herself from that place or any other place, which may be named by the said.....
3. He/ she shall obey such instructions as he/she may receive from the said.....with regard to punctual and regular attendance at employment or otherwise.
4. He/she shall attend the Attendance Centre at.....regularly.
5. He/she shall abstain from committing any offence and shall lead a sober and industrious life to the satisfaction of.....

6. *

7. *

8. *

9. *

10. In the event of his/her committing a breach of any of the above conditions the remission of the period of detention hereby granted shall be liable to be cancelled and on such cancellation he/she shall be dealt under sub-section (3) of Section 59 of the Juvenile Justice (Care & Protection of Children) Act, 2000.

I hereby acknowledge that I am aware of the above conditions which have been read over/explained to me and that I accept the same.

(Signature or mark of the released person)

Certified that the conditions specified in the above order have been read over/explained to (Name).....and that he/she has/accepted them as the conditions upon which the remission of the period of detention has been granted to him/her and that he/she has been released accordingly on the.....

Signature and Designation of the Certifying Authority (i.e., Officer in-charge of the institution)

Form VIII

Vide sub-rule (1) of Rule 53

Social Investigation Report

SI.....No.....

Submitted to the Juvenile Justice Board/Child Welfare Committee.....(Address).

Profile No.

Probation Department

Profile No.

Under Section

Title of Profile :

Police-Station :

Nature of offence charged

(In the case of delinquent juvenile)

Name :

Religion :

Father's Name :

Caste :

Permanent Address :

Year of birth :

Last address before arrest :

Age :

Sex :

Previous institutional history, if any

Family

Members of family

Name

Age

Health

Occupation or School

Wages, if any

Father:

Step-Father:

Mother:

Step-Mother:

Sub-Mother:

Siblings :

If married, relevant particulars :

Other near relatives or agencies
interested :

Attitude towards religion normal

And ethical code of the home etc. :

Social and economic status :

Delinquency record of members of
family :

Present living conditions :

Relationship between parents/Parent

and children especially with the child under investigation :

Other facts of importance, if any :

Juvenile/child's

History

Mental condition : Present and past

Physical condition : Present and
past

Habits, interests :

(Moral, recreational etc.)

Outstanding characteristics and
personality traits :

Companions and their influence :

Truancy from home, if any :

School (Attitude towards school,
teachers, classmates and vice versa) :

Work record (Jobs held, reasons for
leaving vocational interests, attitude towards job or employers)

:

Neighborhood and neighbours report

:

Parent attitude towards discipline
in the home and child's reaction :

Any other remarks

Result of Inquiry

Emotional factors

Physical condition

Intelligence

Social and economic factors

Religious factors

Suggested causes of the problems

Analysis of the case giving an idea

As to how the delinquency developed

Recommendation regarding treatment and its Plan by

Probation Officer/Child Welfare Officer

Signature of the Probation Officer/Case Worker

Form IX

Vide sub-rule (d) of Rule 53

Fortnightly Progress Report of Probationer

Part I ? Name of the Probation Officer/Case Worker

For the Month of

Register No.

Competent Authority

Profile No.

Name of the child

Date of Supervision Order

Address of the Child

Period of Supervision

Part II ? {

| -

| Places of interview

| Dates

| -

| ?.....?.....?.....

| ?.....?.....?.....

| }

1. Where the child is residing ?

2. Progress made in any educational/training course

3. What work he/she is doing and his/her monthly average earning, if employed

4. Savings kept in the Post Office

5. Saving Bank Account in his/her name

6. Remarks on his/her general conduct and progress

7. Whether properly cared for ?

Part III ? 8. Any proceedings before the competent authority of or

(a)

Variation of conditions of bond

(b)

Change of residence

(c)

Other matters

9. Period of supervision completed on.....

10. Result of supervision with remarks (if any)

11. Name and addresses of the parent or guardian or fit person under whose care the juvenile is to live after the supervision is over.

Date of report

Signature of the Probation Officer/Case Worker

Related AI tags, queries and research notes

Translation